

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.226	0.226	0.011	0.285	0.333
Trial Fee-Shifting	0.185	0.123	0.016	0.206	0.174
Complete Fee-Shifting	0.204	0.123	0.042	0.221	0.221